

20STCV26441 20STCV26441

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Case Number: 20STCV26441 Hearing Date: July 1, 2026 Dept: 408

Judgment Creditor

Crystal Bergstrom's Motion for Assignment Order of Rights to Payment is
GRANTED.

I.

BACKGROUND

On July 14, 2020, Plaintiffs Jennie

Buckley and John Buckley ("Plaintiffs") filed a complaint against Defendants

Michael K. Obeng, M.D. and Miko Surgery Center, Inc. ("Defendants") alleging
causes of action for:

1.

Violation of Right to
Privacy;

2.

Violation for
Using Photos for Advertising;

3.

Breach of
Fiduciary Duty of Confidentiality;

4.

Negligence Per Se –
Violation of Health Insurance Portability
and Accountability Act of 1996;

5.

Negligence Per Se –

Violation of Confidentiality of Medical Information Act;

6.

Violation of

Civil Code section 3344;

7.

Violation of

Health and Safety Code section 123110, et seq.; and

8.

Loss

of Consortium.

On November 6, 2020, pursuant to

Plaintiffs' request, default was entered against Defendants.

On September 23,

2021, pursuant to Plaintiffs' request, Does 1 through 25 were dismissed with prejudice.

On October 8,

2021, Default Judgment was entered in favor of Plaintiffs and against Defendants in the amount of \$610,346.61.

On December 9,

2021, the court denied Defendants' Motion to Vacate Default Judgment.

On January 27,

2022, Defendants filed a Notice of Appeal.

On December 19, 2022, Plaintiffs filed an

Acknowledgement of Assignment of Judgment acknowledging an assignment to Ramona Featherby ("Judgment Creditor") of the rights, title, and interest in the Judgment against Defendants (now "Judgment Debtors").

On March 28, 2023, the court ordered that Judgment

Debtor Michael K. Obeng ("Obeng") is restrained from transferring, disposing, or encumbering the 2011 Rolls-Royce Ghost, Vin No. SCA664S54BUX49623, License No. 8RLE443 until such further time as this court orders otherwise.

On July 20, 2023, Remittitur was filed affirming the denial of Defendants' Motion to Vacate Default Judgment.

On November 17, 2023, the court granted Judgment Creditor's Motion for Order to Extend Lien.

On March 5, 2024, the court issued a Bench Warrant for Obeng.

On March 15, 2024, the court recalled and quashed the Bench Warrant for Obeng.

On May 12, 2026, Plaintiffs filed an Acknowledgement of Assignment of Judgment acknowledging an assignment to Crystal Bergstrom (now "Judgment Creditor") of the rights, title, and interest in the Judgment against Judgment Debtors.

On May 15, 2026, Judgment Creditor filed this Motion for Assignment Order of Rights to Payment. On June 18, 2026, Judgment Creditor filed a Notice of Non-Opposition.

II. LEGAL STANDARD

Orders for assignment are governed by Code of Civil Procedure section 708.510, which provides, in relevant part, that "upon application of the judgment creditor on noticed motion, the court may order the judgment debtor to assign to the judgment creditor. . . all or part of a right to payment due or to become due, whether or not the right is conditioned on future developments." (Code Civ. Proc., § 708.510, subd. (a).)

The effect and priority of such an assignment is governed by Civil Code section 955.1. (Code Civ. Proc., § 708.530.) For the purpose of priority, an assignee of a right to payment

pursuant to Section 708.530 shall be deemed to be a bona fide assignee for value under the terms of Civil Code section 955.1.¿(Code Civ. Proc., § 708.530, subd. (a).)

¿

In determining whether to order an assignment or the amount of an assignment pursuant to Section 708.510(a), the court may take into consideration all relevant factors, including the following:¿¿

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1.

The reasonable requirements of a judgment debtor who is a natural person and of persons supported in whole or in part by the judgment debtor.

2.

Payments the judgment debtor is required to make or that are deducted in satisfaction of other judgments and wage assignments, including earnings assignment orders for support.

3.

The amount remaining due on the money judgment.

4. The amount being or to be received in satisfaction of the right to payment that may be assigned.

(Code Civ. Proc., § 708.510, subd.

(c)(1)-(4).)

A right to payment may be assigned pursuant to Section 708.510 only to the extent necessary to satisfy the money judgment. (Code Civ. Proc., §708.510, subd. (d).)

III.

DISCUSSION

Judgment Creditor moves for an order assigning Judgment

Debtors' interest in payments due or to become due to them, including payments from various sources in the medical field and ancillary businesses, to the extent necessary to pay and satisfy the Judgment entered in the instant action. (Motion, at p. 3.) Judgment Creditor also seeks an order prohibiting the Judgment Debtors from interfering with the delivery of said rights to payment and to report to the court on a quarterly basis showing that the order is being followed. (Ibid.)

The court finds good cause to order assignment of such payment rights. Judgment Creditor provides that no part of the Judgment entered on October 8, 2021, for \$610,346.61 has been paid and the outstanding balance on the Judgment, including interest, amounts to nearly \$900,000.00. (Bergstrom Decl., ¶ 3.) Judgment Creditor also provides that Obeng receives compensation for his surgical services and from his ancillary business interests, including a pharmaceutical plant in Ghana, MiKo Pharma Ltd. (Motion, at pp. 4-5; Bergstrom Decl., ¶¶ 4-9, Exhs. C-H.) Based on the record, the court finds that assignment of rights to payment is necessary to satisfy the Judgment.

The court also notes that Judgment Debtors failed to file an opposition. (Cal. R. Ct., 8.54(c) ["A failure to oppose a motion may be deemed a consent to the granting of the motion."]; *Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1410.)

Judgment Creditor also requests that the court restrain Judgment Debtors from assigning or otherwise disposing of the right to payment assigned and provide accounting to ensure that it is available to be applied to the Judgment entered in the instant action pursuant to Code of Civil Procedure section 708.520. (Motion, at p. 7.)

Under Code of Civil Procedure section 708.520(a), "when an application is made pursuant to Section 708.510 or thereafter, the judgment creditor may apply to the court for an order restraining the judgment debtors from assigning or otherwise disposing of the right to payment that is sought to be assigned." (Code Civ. Proc., §708.520, subd. (a).) Accordingly, the court restrains Judgment Debtors from assigning or otherwise disposing of the right to payment assigned to Judgment Creditor as found above.

Accordingly,
the motion is granted.

IV.

CONCLUSION

Judgment Creditor Crystal Bergstrom's

Motion for Assignment Order of Rights to Payment is GRANTED.